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CASE #	CASE NAME	HEARING NAME
CVPS2408394	DESERT HEALTHCARE DISTRICT VS ALL PERSONS INTERESTED IN THE MATTER HEREIN DESCRIBED LEASE PURCHASE TRANSACTION AND RELATED CONTRACTS AND OBLIGATIONS OF DESERT HEALTHCARE DISTRICT WITH RESPECT TO DESERT REGIONAL MEDICAL CENTER, INC.	MOTION TO DISQUALIFY EXPERT

Tentative Ruling: Granted in part.

Granted as to Dr. Paul Wong and NERA who are disqualified from the instant proceedings. Denied as to the law firm of McDermott, Will & Schuttle, LLP.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Desert Healthcare District filed a Complaint for Validation on December 31, 2024 against all persons interested in the matter of a certain lease to purchase transaction and related contracts and obligations of Desert Healthcare District with respect to Desert Regional Medical Center. The Complaint seeks to validate the action taken by Plaintiff regarding the lease purchase agreement (LPA) and the actions of District's Board in approving a fairness opinion from an independent consultant and approving the LPA and ordering that a measure relating to approval of the LPA be placed on the ballot (Measure AA), which was approved by the voters by a margin of 72.34% .

Plaintiff-Intervenor Desert Regional Medical Center (DRMC) moves the court for an order disqualifying expert Dr. Paul Wong and National Economic Research Associates (NERA), and to disqualify McDermott, Will & Schulte, LLP and therefore disqualify McDermott, will & Schulte LLP from serving as counsel and for striking Dr. Wong's report from the record. DRMC moves on the grounds that Dr. Wong and NERA previously performed confidential consulting work for DRMC and in the course of that engagement received confidential and privileged information. DRMC further asserts that disqualification of counsel is warranted under CCP section 128(a)(5) and needed to safeguard attorney work product asserting that disqualification of counsel that retained an expert that received an adversary's confidential information is also required for the same reasons. McDermott retained Dr. Wong and is presumed to have used or obtained the Medical Center's confidential and privileged information.

DRMC asserts that when Eisenhower attached a declaration of Dr. Wong to its Answer (on June 17, 2025), Dr. Wong's CV did not include any reference to his work for the Medical Center's Affiliate, Tenet Health, but on July 16, 2026, when Eisenhower served its expert witness discover Wong's CV now discloses that reference. Accordingly, it was not until July 16, 2026 that DRMC's counsel knew of the conflict. The newest CV is attached to DRMC's counsel declaration and marked as Exhibit C. The CV reflects "*John Muir Health—Tenet Healthcare* (San Ramon Regional Medical Center): Second Request

investigation involving the acquisition of a community hospital in California.” In support of this assertion, DRMC submitted the declaration of Attorney Dione Garlick, who declares to this information.

Also in support of their motion, DRMC submitted the declaration of Attorney Richard Cunningham who declares that in 2023 he worked with Dr. Ramanarayanan and Dr. Wong of NERA on a matter for Tenet health related to Tenet’s proposed sale of its majority ownership interest in San Ramon Regional medical Center to John Muir Health. They provided consulting to Tenet’s in-house and outside counsel on that matter throughout 2023. On August 3, 2024, he contacted both Dr. Ramanarayanan and Dr. Wong to assist Tenet in preparing a letter on behalf of its affiliate DRMC in response to a letter submitted by Eisenhower Health to the Desert healthcare District. Within that email was privileged correspondence from November 2023 that related to the San Ramon matter. Later that day, Dr. Ramanarayanan responded to the email and stated he would be happy as they were not working with Eisenhower. Later that same day, he shared a draft letter written by himself and another Kirkland attorney representing Tenet with Dr. Ramanarayanan and Dr. Wong. The draft letter related to email traffic discussing Tenet’s potential strategies to respond to points raised by Eisenhower in its letter in opposition to the Lease Purchase Agreement. Later that day, Dr. Ramanarayanan sent an email titled privileged and confidential noting it was prepared at the request of counsel. Wong was ccd on that email. At no time in response to his initial email did Dr. Ramanarayanan, Dr. Wong or NERA inform him that Dr. Wong was screened from any Tenet matters, ask him not to include Dr. Wong on correspondence related to Tenet matters, inform him that Dr. Wong had been retained by Eisenhower, nor communicate that Dr. Wong had deleted the correspondent and any associated internal NERA files or correspondence related to Tenet’s response to the Eisenhower letter. The letter prepared on behalf of DRMC where Drs. Ramanarayanan and Wong were consulted was submitted to the District on August 15, 2024.

In opposition, Eisenhower asserts that DRMC claims Dr. Wong possesses a conflict for the first time 13 month after he was disclosed in this matter and has not responded to Eisenhower’s request for information. Eisenhower asserts that the court should deny the motion as Dr. Wong never actually possessed confidential information and DRMC cannot establish that he did by imputing any access by Dr Ramanarayanan to Dr. Wong. Next, Eisenhower asserts that DRMC fails to show that it possessed a reasonable expectation of confidentiality by Dr. Wong, nor have they articulated how the information is material to this action. Lastly, DRMC’s unreasonable delay in bringing the motion constitutes waiver and is prejudicial to Eisenhower on the eve of trial. As to the motion to disqualify Eisenhower’s counsel, Eisenhower asserts there is no basis to do so and it is all based on the assumption that Dr. Wong must be disqualified and that his disqualification must be imputed to counsel. DRMC advances zero allegations against McDermott regarding what allegedly confidential information it could have. But even if this Court finds that Dr. Wong must be disqualified and a rebuttable presumption exists that Dr. Wong has disclosed information to McDermott, any presumption does not withstand the weight of the evidentiary record.

In support of their opposition, Eisenhower submitted 7 declarations including those from Attorney Jason Strabo, Attorney Michelle Lowery, Attorney Tala Jayadevan, and Attorney Claire Danberg all that state that none of the attorneys were aware that Dr. Wong had

received an email from Kirkland & Ellis, LLP regarding DRMC or this litigation and that no confidential information was provided to them. Further, that it was their understanding the NERA performed a standard conflicts check prior to finalizing Dr. Wong's engagement in connection with this litigation. In fact, NERA confirmed to Eisenhower and McDermott that neither it nor Dr. Wong had a conflict regarding this litigation.

In addition, Eisenhower submitted the declarations of Dr. Paul Wong, Salvatore D'Addio and Thomas Hinchliff. Dr. Wong's declaration asserts that starting in December 2021, NERA, through him, was retained by Eisenhower to consider various matters relating to DRMC. Then in about 2024 he received an unsolicited email from Kirkland & Ellis, LLP who represents Tenet and quickly observed that it related to DRMC. He immediately closed the email and informed his NERA colleague that he could not work on anything for DRMC and took no further action with respect to the initial Kirkland 2024 email or the subject matter described in it. He did not respond to the email, communicate with Kirkland Ellis regarding the matter, nor download or otherwise save the email or any of its attachments. Neither he, nor NERA was ever retained by DRMC in connection with the matter referenced in the email nor did NERA ever enter into an engagement agreement with DRMC and never billed DRMC for any professional services. Any subsequent email thread that he may have inadvertently been added to, he does not recall receiving or opening the email and did not rely on its contents with respect to his work on this matter. The report was based on publicly available information only.

The declaration of Salvatore D'Addio, Manager for NERA, states that based on NERA's records they have never entered into an agreement with DRMC or its counsel on behalf of DRMC. The declaration of Thomas Hinchliff, Global Billing Manager, NERA declares that based on a review of NERA records they have never billed DRMC, or its counsel on behalf of DRMC.

In reply, DRMC asserts that in 2024 prior to retaining Dr. Wong and NERA, DRMC specifically inquired about whether they represented Eisenhower and were told they did not. Thereafter, DRMC sent Dr. Wong and NERA attorney-client and attorney work product privileged materials, not just about this dispute, but about Eisenhower's complaint in the matter specifically. Two years later, Dr. Wong now admits that he literally switched sides and took on the representation of the Medical Center's adversary in these proceedings—Eisenhower—in the very same matter he and NERA assisted the Medical Center. He must be disqualified from doing so. And McDermott, having retained Dr. Wong, must now also be disqualified.

Motion to Exclude Expert Wong and NERA

A party seeking to disqualify an expert must show that the expert possesses confidential attorney-client privileged information materially related to the proceedings before the court. (See, e.g., *DeLuca v. State Fish Co.* (2013) 217 Cal.App.4th 671, 691; *Western Digital Corp. v. Superior Court* (1998) 60 Cal.App.4th 1471, 1487; *In re Complex Asbestos Litigation* (1991) 232 Cal.App.3d 572, 596.) The party seeking disqualification is not "required to disclose the actual information contended to be confidential." (*In re Complex Asbestos Litig.*, supra, 232 Cal.App.3d at p. 596.) The court need only "be provided with the nature of the information and its material relationship to the proceeding." (*Id.*)

Here, it is clear from the declarations submitted from both parties that Dr. Wong and NERA were never specifically retained by DRMC regarding the matters at issue in this litigation. To the extent that Dr. Wong was included on two emails (which he says he did not read or save) related to providing consulting services related to how to respond to Eisenhower's letter to the District, it is unclear what confidential information was provided related to the matters in this action. Attorney Cunningham's email specifically declares that the confidential information at issue was "The content beginning at the bottom of page 3 that is redacted from November 2023 that relates to the San Ramon matter..." That matter has no connection to the instant action.

What is a closer call though is the Exhibit 1, p.1. of Attorney Cunningham's declaration where "potential strategies to respond to points raised by Eisenhower in its letter in opposition to the Lease Purchase Agreement." However, while Dr. Wong states in his declaration that he did not read or retain any confidential information provided by DRMC it is very clear that he (more importantly his employer who could have benefited from better conflict screening practices) received and had access to confidential information related to the proceedings before this court. This court must grant the instant motion. Dr. Paul Wong and NERA are disqualified as expert witnesses in these proceedings.

Attorney/Firm Disqualification

A trial court's authority to disqualify an attorney derives from the power inherent in every court to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto. (C.C.P., § 128(a)(5); see also *People v. Speedee Oil Change Sys., Inc.* (1999) 20 Cal.4th 1135, 1145.)

A party moving to disqualify counsel carries the burden of establishing by a preponderance of the evidence that a substantial relationship exists. (See *H.F. Ahmanson & Co. v. Salomon Bros.* (1991) 229 Cal.App.3d 1445, 1452.) Where an attorney successively represents one client following the prior representation of another client, the Court's concern is to enforce the duty of confidentiality owed to the former client. (*Flatt v. Superior Court* (1994) 9 Cal.4th 275, 283.)

"Before an attorney may be disqualified from representing a party in litigation because his representation of that party is adverse to the interest of a current or former client, it must first be established that the party seeking the attorney's disqualification *was or is 'represented'* by the attorney in a manner giving rise to an attorney-client relationship." (*Civil Service Comm'n v. Sup. Ct.* (1984) 163 Cal.App.3d 70, 76-77 [emphasis added].) "An attorney represents a client—for purposes of a conflict of interest analysis—*when the attorney knowingly obtains material confidential information from the client and renders legal advice or services as a result.*" (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1148, (*Speedee Oil*) [emphasis added]; see *Marriage of Zimmerman* (1993) 16 Cal.App.4th 556, 564-565.) Determination of the existence of an attorney-client relationship is generally a question of law. (*Meehan v. Hopps* (1956) 144 Cal.App.2d 284, 287.)

Here, there is not any prior relationship between counsel and opposing parties. However, there is a presumption that the subject law firm may have gained access to confidential

information through the retention of an expert witness. Specifically, Dr. Wong may have disclosed confidential information and attorney work product to McDermott law firm. Yet, the disclosure in question relates to a public response that the parties are well past. At this stage in the proceedings, moving party has failed to establish prejudice (past, present, or future) from this past disclosure as this stage of the proceedings.

3.

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Tentative Ruling: Granted.

Moving party to provide notice pursuant to CCP 1019.5.

Eisenhower's Notice of Lodging and Supplement to the Administrative Record is stricken in its entirety.

Plaintiff Desert Healthcare District filed a Complaint for Validation on December 31, 2024 against all persons interested in the matter of a certain lease to purchase transaction and related contracts and obligations of Desert Healthcare District with respect to Desert Regional Medical Center. The Complaint seeks to validate the action taken by Plaintiff regarding the lease purchase agreement (LPA) and the actions of District's Board in approving a fairness opinion from an independent consultant and approving the LPA and ordering that a measure relating to approval of the LPA be placed on the ballot (Measure AA), which was approved by the voters by a margin of 72.34% .

Plaintiff Desert Healthcare District and Plaintiff-Intervenor Desert Regional Medical Center move the court to strike Eisenhower Medical Center's Notice of Lodging of Documents Conditionally under seal on August 5, 2026, labeled Eisenhower's supplement to the administrative record (Eisenhower_00000001 – Eisenhower_00006746, including the expert report of Paul Wong. Plaintiffs move pursuant to CCP section 128(a), 435 and 436 on the grounds that Eisenhower has no right, statutorily or otherwise, to supplement or augment the administrative record, which duty is assigned exclusively to the agency that made the decision.

In opposition, Eisenhower asserts that the evidence submitted is properly submitted and complies with CRC and Local Rules that require Eisenhower to lodge confidential materials before offering them into evidence at trial. Therefore, Eisenhower lodged its supplement to the administrative record to ensure that it preserved its right to offer this evidence at trial. Further, Eisenhower asserts that its notice of lodging is consistent with the court's August 3, 2026 order. Eisenhower also asserts that the motion to strike is an